

Code, § 912.4(c).) Plaintiff does not allege any basis to extend the period within which EBMUD was required to act on her claim. Thus, Plaintiff's assertion that her property damage claim is or should be open is contrary to law.

To the extent Plaintiff's claim could be construed as seeking recovery based on EBMUD's negligence in managing the conditions that resulted in property damage, such a claim would be time-barred for the reason stated above. However, the statute of limitations issue is not dispositive here because Plaintiff has not framed her ninth cause of action as one seeking recovery for negligence in managing EBMUD's property. Instead, she claims that EBMUD is liable for negligently handling her government claim.

In reply, EBMUD relies on *Slater v. Blackwood* (1975) 15 Cal.3d 791 to argue the ninth cause of action is merely a new legal theory for the same 2019 property damage. It is. But *Slater* addressed claim preclusion following a final judgment, not whether a plaintiff may assert a different theory of liability in the absence of a prior adjudication on the merits. Here, there has been no judgment against Plaintiff on a claim against EBMUD, so the issue is not claim splitting but whether the negligent-claims-handling theory states a cognizable cause of action at all. Plaintiff cites no authority recognizing such a cause of action and identifies no statute imposing a duty on a public entity to investigate or pay a claim at the claim-presentation stage.

Moreover, Plaintiff's 4AC fails to state a cause of action against EBMUD under Plaintiff's negligent-claims-handling theory because Plaintiff has not alleged, and it is apparent on the face of the pleading cannot at this stage allege, compliance with the claims presentation requirements under the Government Claims Act in as much as this would be an independent tort which itself would have been subject to such prior presentation. (See Govt. Code § 810 et seq.)

For these reasons, the Court finds that Plaintiff's negligence claim fails matter of law.

IV. Disposition

Based on the foregoing, EBMUD's demurrer is **sustained without leave to amend**. Plaintiff has not identified any manner in which the 4AC could be amended to state a viable cause of action. If Plaintiff contests this ruling, she must appear at the hearing prepared to explain how the pleading could be amended to cure the deficiencies discussed above.

16. 9:00 AM CASE NUMBER: MSC21-02266
CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:
TENTATIVE RULING:

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint (FAXC) is continued to **February 9, 2026**.

EBMUD demurs to Hacienda's cross-complaint for indemnity, contribution, and declaratory relief on

statute of limitations grounds, contending that Hacienda's claims are untimely. EBMUD asserts that Hacienda presented a government claim for indemnity in January 2023, that the claim was rejected in April 2023, and that Hacienda was therefore required to file any cross-complaint against EBMUD by October 2023. According to EBMUD, Hacienda's later-filed cross-complaint is time-barred.

In opposition, Hacienda argues that its FAXC seeks indemnity for potential liability arising from a newly identified theory of negligence; namely, the alleged negligent handling of Plaintiff's government claim based on testimony elicited at the September 2024 deposition of EBMUD's representative. Hacienda contends that, because its indemnity claims are premised on this theory, the statute of limitations does not bar the claims.

Because Hacienda's opposition frames its claims as contingent on Plaintiff's ability to state a viable claim against EBMUD for negligent claims handling, the Court finds that it is appropriate to defer ruling on EBMUD's demurrer to the FAXC pending resolution of EBMUD's demurrer Plaintiff's operative complaint.

If Plaintiff is unable to state a viable claim against EBMUD, Hacienda's cross-claims may be moot. If Plaintiff is granted leave to amend and files an amended pleading asserting claims against EBMUD, the Court may revisit EBMUD's demurrer to the cross-complaint at that time.

If Plaintiff contests the tentative ruling on EBMUD's demurrer to the 4AC, Hacienda should be prepared to appear, as the disposition of that demurrer may affect the continued demurrer to the cross-complaint.

17. 9:00 AM CASE NUMBER: N23-1456

CASE NAME: PETITION OF: CURIA GLOBAL, INC.

***HEARING ON MOTION IN RE: SEAL EVIDENCE SUBMITTED IN SUPPORT OF PETITIONERS MOTION TO AMEND JUDGMENT**

FILED BY: VAXANIX BIO, LTD.

TENTATIVE RULING:

Third parties Vaxanix Bio, Ltd. and Vaxanix Bio Acquisition Corp. II (the "Vaxanix Parties") filed a Motion to Seal Evidence Submitted in Support of Petitioner's Motion to Amend Judgment on November 13, 2025 (the "Motion to Seal"). The Motion to Seal was set for hearing on January 12, 2025. The motion is unopposed.

Background

The Court entered its Amended Judgment herein on May 28, 2024 (the "Judgment"), confirming an arbitration award in favor of petitioner Curia Global, Inc. ("Curia") as against the named respondent ("BryoLogyx").

On November 4, 2025, Curia filed a motion to amend the Judgment to add the Vaxanix Parties as "Judgment Debtors by Succession." See Notice of Motion and Motion to Amend Judgment filed November 4, 2025 (the "Motion to Amend Judgment"). The Motion to Amend Judgment is presently set